



TO TAKE A LIFE IS REVENGE, NOT JUSTICE

THE ABOLITION OF THE DEATH PENALTY (1863)

IN CONTEXT

FOCUS

Criminal law

BEFORE

1764 Cesare Beccaria argues that there is no justification for the state to take a life.

1794 Pennsylvania is the first US state to limit crimes punishable by the death penalty to first-degree murder.

1852 Rhode Island is the first US state to abolish the death penalty for all crimes.

AFTER

1969 The death penalty is abolished in Britain, but two-thirds of the Commonwealth retain it.

1977 In France, lawyer Robert Badinter convinces a jury not to execute child murderer Patrick Henry.

1981 France abolishes the death penalty, passing a bill proposed by Badinter as Minister of Justice.

Historically, the death penalty is the ultimate punishment, seen as both a deterrent and a just method of retribution. The first recorded capital punishment laws are found in the Code of Hammurabi (c. 1750 BCE), which imposed death for 25 crimes in ancient Babylon. By the 18th century, more than 200 crimes were punishable by death in Britain, and public executions were a spectacle across Europe.

Those in favor of the death penalty often invoked the ancient principle of *lex talionis* (law of retaliation)—“an eye for an eye.” This form of retaliatory justice argues that the punishment should mirror the crime, so that anyone taking a life should lose their own. The counterargument against the death penalty emerged with the Age of Enlightenment in the 18th century, when philosophers argued that executions were themselves a legitimized form of murder.

Support for the abolitionist argument against the inhumanity and hypocrisy of state-sanctioned

executions grew, but it was slow to take hold. While the Republic of Venezuela abolished the death penalty in 1863, by 1900, just three countries had followed suit. Today, there is a steady shift away from capital punishment; more than 100 countries have abolished it entirely and others have partially abolished it or barely use it, but more than 50 nations (including the US) still retain the death penalty. ■



[It] seems so absurd to me that the laws ... to dissuade citizens from murder, order a public murder.

Cesare Beccaria
Italian jurist, politician, and philosopher (1738–1794)



See also: The trial of Charles I 96–97 ■ The Universal Declaration of Human Rights 222–229 ■ The European Convention on Human Rights 230–233